

JUN 11 2026

Amended Professional Engineer Safety Report: Hazardous Forest on Chicago Avenue Slope, Yorba Linda, CA

BY _____

Report Date: September 15, 2025

Prepared by: Peter Meng, P.E.

License Number: 63423

Contact: _____

Property Address: Slope Adjacent to 17412 Chicago Ave, Yorba Linda, CA 92886

Executive Summary

This report amends my original Professional Engineer Safety Report dated August 25, 2025, to incorporate new findings, engineering analysis, and legal analysis addressing the hazardous forest on the interior slope near 17412 Chicago Ave, which poses an imminent fire and structural risk to pre-1980 non-fire-resistant homes. As a California-licensed Professional Engineer (P.E.) under Business and Professions Code § 6700 et seq. and 16 CCR § 404, I am obligated to disclose and address known risks that endanger public safety, health, property, or welfare. Despite my formal notice dated August 20, 2025 (Exhibit A), requesting removal within 15 days, and the City's acknowledgment of receipt on August 21, 2025, no substantive response has been provided by the September 4, 2025, deadline. This amended report updates the assessment with new evidence refuting false claims and strengthens the call for action. The forest's condition violates state and local fire codes, potentially infringing on property owners' rights under California Civil Code §§ 833-834. Federal laws, including the Fifth Amendment's Takings Clause (U.S. Const. amend. V) and 14th Amendment due process (U.S. Const. amend. XIV), may apply if the City's inaction constitutes a regulatory taking without compensation. I recommend LMAD immediate removal of identified hazardous trees by the current City Engineer and a comprehensive neighborhood forestry safety assessment for all private homeowner properties affected by similar hazardous conditions to mitigate widespread fire risks, given the discouragement of public comment at the upcoming September 16, 2025, Council meeting. Please respond by September 30, 2025.

Background and Hazard Description

The subject property includes a 30-by-55-foot slope maintained by the City's Landscape Maintenance Assessment District (LMAD) under a limited easement for landscaping (Exhibit B, Easement from Tract No. 16043). The City Engineer's filing with the court in Exhibit B attests to the ownership of this slope portion by the affected homeowners. The slope is densely planted with pine and pepper trees, located within 100 feet of pre-1980 non-fire-resistant homes and 30 feet of structures. These trees exhibit browning needles, indicating health decline and increased flammability (photos attached as Exhibit C). The area is designated a High Fire Hazard Area by CAL FIRE since 2011 and remains excluded from the VHFHSZ despite non-compliance with defensible space standards.

This configuration mirrors the 2008 OCFA Freeway Complex Fire's devastation to pre-1980 neighborhoods with small lots and no defensible space (OCFA 2008 Report, Exhibit D). The 2013 OC Register article (Exhibit E) cites OCFA Chief Kris Concepcion's warning on pine trees' high oil content, making them "more susceptible to fire" near homes.

NASA's 2025 Eaton Fire report (Exhibit F) further confirms steep slope risks, while the USDOT March 2025 pipeline warning (Exhibit G) highlights explosion hazards from overgrown vegetation. NASA's 2008 findings (Exhibit K) document fire-affected areas, including the identified Chicago Ave location as part of the region impacted by the Freeway Complex Fire.

Refuting Recent Statements and New Findings

In the August 19, 2025, council meeting, an adjoining Chicago Ave resident claimed the forest shields her backyard view, framing it as a benefit, and falsely asserted the limited area does not include the affected neighborhood. This claim is inaccurate: the OCFA 2008 Freeway Complex Fire report covers the entire City boundary, including the Chicago Ave region, where residents received evacuation orders, and NASA's 2008 findings (Exhibit K) confirm the Chicago Ave location as part of the affected fire region. The neighbor's assertion is further contradicted by her home being three houses away from the cited safety risk area, with the back sides of homes on top of the slope visible to Chicago Ave residents below, not her backyard. No recorded document evidences screening of new development to support this claim, as confirmed by the absence of such records in Exhibit J (Master Declaration CC&R). The limited 30-foot slope area lies over gas fuel lines, with large trees lacking the required set-back as depicted in the City-provided landscape tree locations (Exhibit J).

The neighbor also falsely depicted slope owners as villains for modifying trees on their properties prior to the City Council, influenced by her self-interest, halting such modifications in the early 2000s to limit neighbor property owners' legal rights. The City Engineer's court filing in Exhibit B confirms homeowner ownership, and no such incidents have occurred since. At the August 19, 2025, hearing, she claimed the City fined property owners, but evidence shows the trees' replacement cost was paid by the builder to the homeowner, a misrepresentation intended to discredit victims of the hazardous forest she has persistently advocated to maintain since the early 2000s. This policy, supported by her and government agencies, contributed to the 2008 fire, as documented in the OCFA 2008 report, which noted homeowners were disallowed from clearing their properties.

The City Attorney and City spokesman Geoff Spencer cited prior cases, noting the first was dismissed without prejudice, allowing refiling with new evidence. However, the second case failed to consider new evidence from the 2008 Freeway Complex Fire report, which highlights pre-1980 homes lacking fire-resistant construction (e.g., unenclosed eaves). The resident's claim of a tile roof is an outlier, as her neighbors have asphalt shingles on small lots typical of the area.

Most critically, the spite fence of non-fire-resistant plants constitutes a nuisance per se, disallowed by the recorded community development document (Exhibit H, VDV Conditions) and the Master Declaration CC&R (Exhibit J), which specifies "no public purpose" and affirms homeowners' rights to remove nuisances. The 2022 OCFA wildfire risk area correction list cited debris cleanup but did not address the illicit forest, nor did

it identify the lack of set-back from hazardous fuel lines or the overgrown, overcrowded ill trees failing to meet required distances.

Legal Basis for Action

- State Laws:

- California Civil Code §§ 833-834: Owners have the right to remove hazardous trees on their land or boundaries if safety is at stake, even in an easement area, as upheld in **Mahoney v. City of San Diego** (2015) 173 Cal.App.4th 1249.

- Public Resources Code § 4291: Mandates defensible space; the forest's lack of 50-foot clearance violates this, requiring removal of flammable vegetation.

- Gov. Code §§ 51175-51189: VHFHSZ standards demand hazard mitigation; the exclusion of this area, despite risks, may breach reclassification requirements in VDV conditions (Exhibit H).

- Business and Professions Code § 6700 et seq. and 16 CCR § 404: As a PE, I must disclose this peril; the City's inaction compels this report.

- Federal Laws:

- Fifth Amendment (Takings Clause): The City's maintenance of hazardous vegetation on private property without compensation, potentially benefiting a specific individual (e.g., an adjoining neighbor's view shielding), may constitute a regulatory taking if it denies all economic use or substantially impairs safety (*Lucas v. South Carolina Coastal Council*, 505 U.S. 1003, 1019 (1992)).

- 14th Amendment (Due Process): The City's failure to provide fair process in addressing documented risks, despite property owner requests (e.g., through formal notices), may violate substantive due process by arbitrarily endangering public safety, a fundamental right (*Lingle v. Chevron U.S.A. Inc.*, 544 U.S. 528, 540 (2005); see also *County of Sacramento v. Lewis*, 523 U.S. 833 (1998)).

Findings and Recommendations

- The forest's high oil content (2013 article) and browning needles indicate decline, increasing fire spread risk in this VHFHSZ-excluded area. The OCFA 2008 report's coverage of the entire City, including Chicago Ave with evacuation orders, and NASA's 2008 findings (Exhibit K) confirming the Chicago Ave location as part of the affected fire region, refute the neighbor's false claim of a limited unaffected area. The overgrown vegetation, as a spite fence benefiting one neighbor's view shielding, violates Civil Code § 841.4, which prohibits malicious structures over 10 feet to annoy neighbors. The professional engineer assessment confirms the forest's overgrowth creates a nuisance per se, as disallowed by the recorded VDV development document (Exhibit H) and Master Declaration CC&R (Exhibit J), meaning there is no end to the legal solution. Additionally, the forest exhibits lack of utility clearance, blocks emergency access windows, includes disallowed non-fire-resistant plants, and features overcrowded pine and pepper trees with overlapping branches, exacerbating the hazard. This existing overgrown and crowded condition of fire-hazardous pine and pepper tree branches overlapping is disallowed and poses a significant risk, further un-justifying the area's exclusion from the VHFHSZ as a condition under the underlying VDV conditions (Exhibit H), which mandates compliance with fire safety standards.

- Slope proximity (100/30 feet) blocks emergency access, violating OCFA Guide-B09 (Exhibit I).
- Recommend LMAD immediate removal of identified hazardous trees by the current City Engineer and a comprehensive neighborhood forestry safety assessment for all private homeowner properties affected by similar hazardous conditions to mitigate widespread fire risks, given the discouragement of public comment at the upcoming September 16, 2025, Council meeting. This assessment is crucial, as the forest's risks extend beyond individual lots, potentially impacting the entire VHFHSZ-excluded area per OCFA 2008 Freeway Complex Fire report findings on widespread vegetation hazards.

This report fulfills my PE duty; failure to act may expose the City to liability. Please respond by September 30, 2025.



Peter Meng, P.E.
License Number: 63423

Exhibits (Attached):

- A: August 20, 2025, Formal Notice
- B: Easement from Tract No. 16043
- C: Photos of Browning Needles
- D: 2008 OCFA Freeway Complex Fire Report
- E: 2013 OC Register Article
- F: NASA 2025 Eaton Fire Report
- G: USDOT March 2025 Pipeline Warning
- H: VDV Conditions
- I: OCFA Guide-B09
- J: Master Declaration CC&R
- K: NASA Yorba Linda Fire Area (2008 Findings)

Formal Notice and Request for Removal of Hazardous Trees

RECEIVED
CITY OF YORBA LINDA
CITY CLERK'S DEPT

Date: August 20, 2025

JUN 11 2026

To: City Council, City of Yorba Linda
Address: 4845 Casa Loma Ave, Yorba Linda, CA 92886
CC: City Clerk, City Engineer, OCFA Chief Kevin Fetterman

BY _____

Dear City Council and City Clerk,

I, Peter Meng, a licensed Professional Engineer and property owner at 17390 Drake Street, Yorba Linda, CA, issue this formal notice pursuant to California Civil Code §§ 833-834 and Public Resources Code § 4291. The pine and pepper trees within my property, subject to the City's landscape easement for maintenance, are located within 100 feet of non-fire-resistant homes and 30 feet from residences, posing an immediate fire hazard as documented in the 2013 OC Register article and OCFA's 2008 Freeway Complex Fire report.

This clustered forest, in proximity to active gas fuel lines without required clearance, does not meet the standards for VHFHSZ removal, as it blocks emergency access per OCFA development guidelines, including the 50-foot clearance zone requiring fire-resistant plants that are maintained and irrigated. Under Civil Code § 833, I own trees wholly within my property line, and under § 834, boundary trees are joint property, unless the easement transfers ownership—yet the City retains maintenance responsibility. As a PE under Business and Professions Code § 6700 et seq. and 16 CCR § 404, I am obligated to disclose this peril and protect public safety. Public Resources Code § 4291 mandates defensible space, a duty compromised by the City's hazardous plantings in this VHFHSZ.

I respectfully request the LMAD remove these perilous trees immediately or authorize me to do so at my expense. Please respond by September 4, 2025. Failure to act endangers our community, and I reserve all legal rights to ensure safety.

Sincerely,

[Redacted Signature]

Peter Meng, P.E.
PO Box 102, Yorba Linda, CA 92886

[Redacted Address]

Attachments: Excerpts from Easement Agreement, 2013 OC Register Article, Photos of Forest Proximity, OCFA Guidelines,

EXHIBIT "ONE"

PARCEL 1:

LOT 8 OF TRACT NO. 16043, AS SHOWN ON A MAP FILED IN BOOK 806, PAGES 9 TO 14 INCLUSIVE OF MISCELLANEOUS MAPS, RECORDS OF ORANGE COUNTY, CALIFORNIA.

EXCEPTING THEREFROM ALL OIL, OIL RIGHTS, MINERALS, MINERAL RIGHTS, NATURAL GAS, NATURAL GAS RIGHTS, AND OTHER HYDROCARBONS BY WHATSOEVER NAME KNOWN, GEOTHERMAL STEAM, AND ALL PRODUCTS DERIVED FROM ANY OF THE FOREGOING, THAT MAY BE WITHIN OR UNDER THE PARCEL OF LAND HEREINABOVE DESCRIBED, TOGETHER WITH THE PERPETUAL RIGHT OF DRILLING, MINING, EXPLORING, AND OPERATING THEREFOR, AND STORING IN AND REMOVING THE SAME FROM SAID LAND OR ANY OTHER LAND, INCLUDING THE RIGHT TO WHIPSTOCK OR DIRECTIONALLY DRILL AND MINE FROM LANDS OTHER THAN THOSE HEREINABOVE DESCRIBED, OIL OR GAS WELLS, TUNNELS AND SHAFTS INTO, THROUGH OR ACROSS THE SUBSURFACE OF THE LAND HEREINABOVE DESCRIBED, AND TO BOTTOM SUCH WHIPSTOCKED OR DIRECTIONALLY DRILLED WELLS, TUNNELS AND SHAFTS UNDER AND BENEATH OR BEYOND THE EXTERIOR LIMITS THEREOF, AND TO REDRILL, RETUNNEL, EQUIP, MAINTAIN, REPAIR, DEEPEN AND OPERATE ANY SUCH WELLS OR MINES, WITHOUT, HOWEVER, THE RIGHT TO DRILL, MINE, STORE, EXPLORE AND OPERATE THROUGH THE SURFACE OR THE UPPER 250 FEET OF THE SUBSURFACE OF THE LAND HEREINABOVE DESCRIBED, AS RESERVED IN THE DEED RECORDED MARCH 17, 2000 AS INSTRUMENT NO. 20000141337 OF OFFICIAL RECORDS.

PARCEL 2:

~~NON-EXCLUSIVE EASEMENTS FOR ACCESS, DRAINAGE, ENCROACHMENT, MAINTENANCE, REPAIR, ALL AS MAY BE SHOWN ON THE MAP OF SAID TRACT, AS DESCRIBED IN THE MASTER DECLARATION OF RESTRICTIONS AND RESERVATION OF EASEMENTS FOR THE VISTA DEL VERDE MASTER PLANNED COMMUNITY YORBA LINDA, CALIFORNIA (TOGETHER WITH ANY AMENDMENTS THERETO, COLLECTIVELY, THE "DECLARATION"), WHICH WAS RECORDED ON FEBRUARY 25, 2000 AS INSTRUMENT NO. 20000098875, AND THE SUPPLEMENTAL DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS FOR TERRAZA AT VISTA DEL VERDE (TOGETHER WITH ANY AMENDMENTS THERETO, COLLECTIVELY, THE "SUPPLEMENTAL DECLARATION"), WHICH WAS RECORDED MAY 18, 2001 AS INSTRUMENT NO. 20010320248, BOTH IN OF OFFICIAL RECORDS OF ORANGE COUNTY, CALIFORNIA "OFFICIAL RECORDS").~~

1 with conditions. Attached hereto as Exhibit B is a true and correct copy of Resolution No. 98-
2 3239. Pursuant to those conditions, the entire project was included within the Landscape
3 Maintenance Assessment District.

4 4. Tract No. 16043 further subdivided a portion of Vesting Tentative Tact Map 15572
5 into individual residential lots, including the subject lot currently owned by Petitioner (the
6 "Subject Property"). Tract No. 16043 expressly dedicated to the City an easement over the down
7 slope portion of the Subject Property for landscape maintenance (the "Easement Area"). The City
8 accepted the easement for landscape maintenance purposes on September 19, 2000. Tract No.
9 16043, with its acceptance of the landscape maintenance easement, was recorded in the Orange
10 County Recorder's Office on October 6, 2000. Attached hereto as Exhibit C is a true and correct
11 copy of the recorded Tract No. 16043.

1 Area and the landscape district.

2 9. City of Yorba Linda Municipal Code section 18.36.800 *et seq.* expressly provides
3 for appeal from a decision of the City's Community Development Department relating to City
4 land use decisions. Attached hereto as Exhibit F is a true and correct copy of the relevant portions
5 of the City or Yorba Linda Municipal Code. Petitioner never sought a final decision from the City
6 Council pursuant to City of Yorba Linda Municipal Code section 18.36.800 *et seq.*

7 Executed on August 13 2012, at Yorba Linda, California.

8 I declare under penalty of perjury under the laws of the State of California that the
9 foregoing is true and correct.

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12 Mark Stowell
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Existing Communities

The most significant challenge is protecting the areas established prior to current fuel modification and construction requirements. The pre-1980 established areas lack adequate brush clearance, and

Page 22

Freeway Complex Fire – November 2008

some have home lots that are too small to create adequate defensible space on the property. Homeowners often cannot obtain permission for off-site clearance from neighbors or government entities. Environmental restrictions also hinder the ability to create defensible space. State and

Although fuel modification and defensible space provisions are typically applied at the perimeter of a development—the “edge” of the WUI, homes on or near interior slopes are also at risk. The vegetation in these areas should also be managed to reduce the risk of home loss from fires.



Arrow pointing to an overgrown interior slope prior to the Freeway Complex Fire



Arrow pointing to the same slope after the Freeway Complex Fire showing the tragic loss of homes along the ridge

The provisions for fuel modification and defensible space have evolved over the past 30 years. Although proven effective in protecting communities during wildfire incidents, the provisions are not without implementation challenges. The most significant of these is maintenance.

Maintenance of Brush Clearance

The OCFA does not have a formal WUI inspection program. As a result, if areas are not properly maintained and irrigated by the responsible landowner, overgrowth and/or plant death may occur.

City lumbers to avoid fire-prone trees

By [DANIEL LANGHORNE](#)

2013-05-20 07:22:12

The City Council is looking to root out the city's practice of planting species that are deemed potential fire hazards by fire officials.

The City Council took the first step last week by voting for a moratorium on city staff planting pine trees within the city limits. The Orange County Fire Authority put pine trees on a list of undesirable species that should not be used in fire prone areas.

"There's no reason to continue a bad practice," said Councilman John Anderson, who proposed the pine tree ban. "To me it's one of the clearest issues we've faced in a long time."

Kris Concepcion, division chief for the Orange County Fire Authority, said fire officials learned a lot of lessons about troublesome landscaping from the 2008 Freeway Complex Fire. He said there are oils inside pine trees that make them more susceptible to fire and can be dangerous if they are planted close to homes and not maintained.

The city will do a comprehensive review of its landscaping palette. This partly comes from damage that palm trees also did during the fire. If the palm fronds aren't properly trimmed they can dry out and catch fire and embers carried by the wind can collect in the tree's crown, Concepcion said.

The City Council will receive an update on changes to city landscaping on May 21.

City staff will notify developers currently building and those in plan check to not use pine trees in their landscaping, said Mark Stowell, director of public works. Stowell added that the city cannot prevent someone from planting a pine tree on private property, but it is their responsibility to limit the risk of fire to their home and their neighbors' homes.

Councilman Gene Hernandez was the lone opposing vote, although he supports the idea behind the ban. He said he wanted to give developers clear direction on alternatives to pine tree. He was also concerned that it would look awkward to start planting a different species next to long stretches of pines that already line some streets.

"I just want a systematic approach so we do it the right way," he said.

Dr. Jack Kennis, a local property rights activist, saw the council's decision as a victory for the community.

Besides the safety issue, Kennis has been vocal at council meetings that the pine trees obstruct views and bring down people's home values.

Concepcion emphasized to the council that residents can invite fire authority employees to do a risk assessment of the landscaping around their home. Fire officials recommend residents visit readyssetgooc.org and look under documents to see a list of dos and don'ts when landscaping yards.

Contact the writer: [714-704-3704](tel:714-704-3704) or dlanghorne@ocregister.com

January 9, 2025 - Fires Scorch Los Angeles County



While smoke of any type creates pollution that can be a hazard to human and animal health, urban wildfires carry additional risks when compared to wildland fires. The primary fuel in wildland fires is vegetative biomass, such as trees, shrubs, and grasses. In contrast, fires that burn in urban areas or urban-wildland interface (UWI) will combust halogen, plastic, metals, polyvinyl chloride, polyurethane and a wide variety of human-made materials, some of which may be significantly toxic.

Image Facts

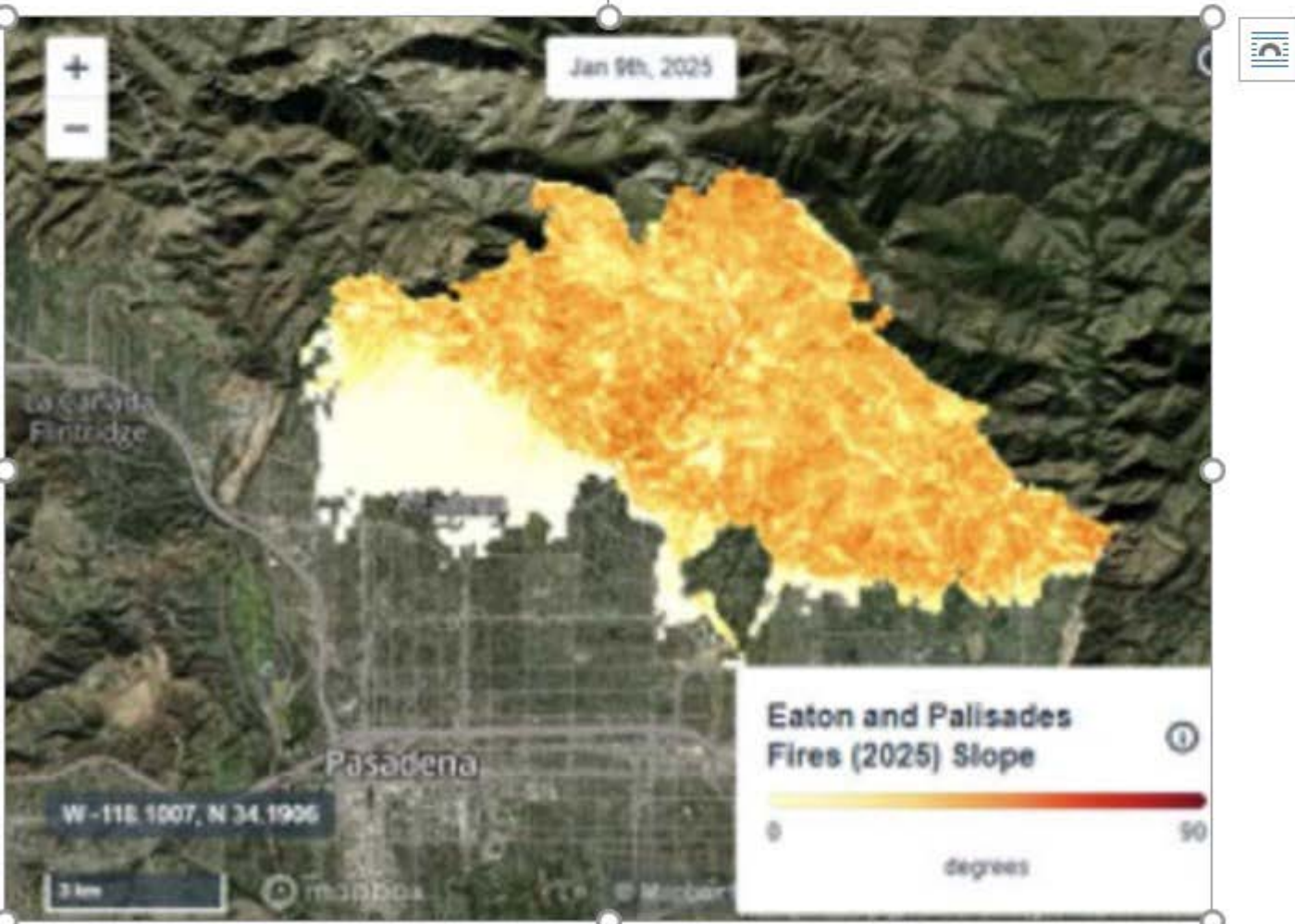
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Date Acquired: 1/7/2025

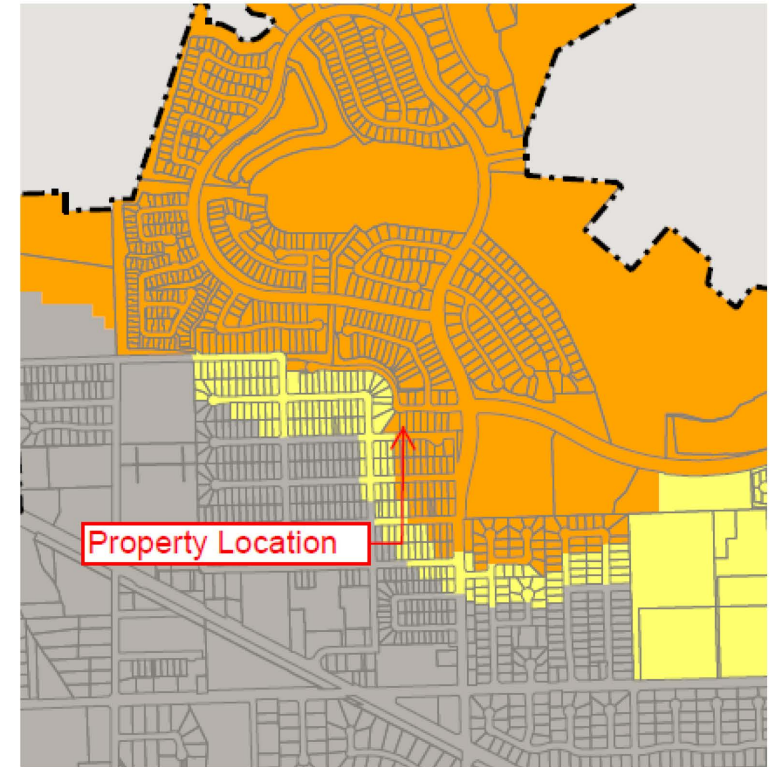
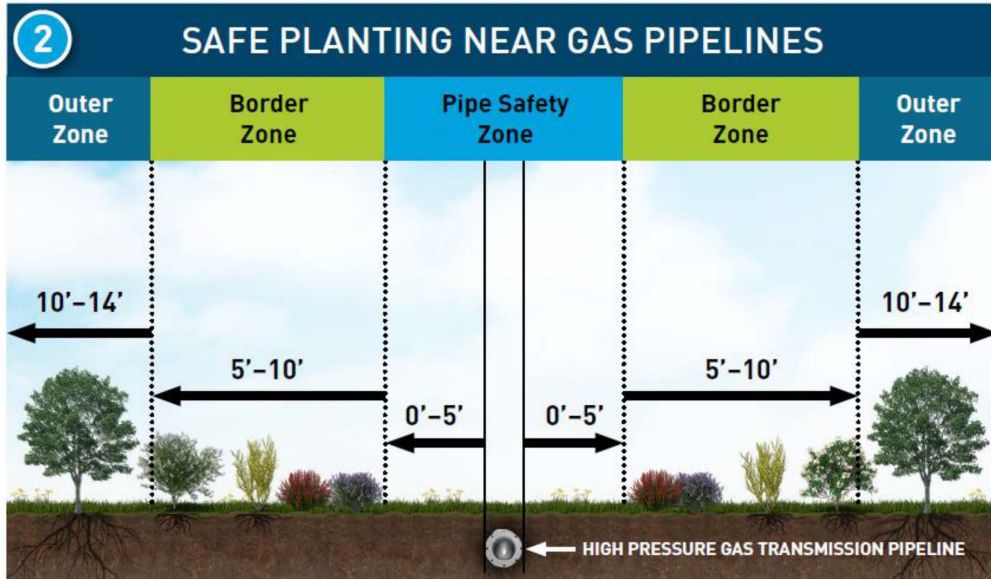
Resolutions: 1km (107.7 KB), 500m (319.2 KB), 250m (869.1 KB)

Bands Used: 1,4,3

Image Credit: MODIS Land Rapid Response Team, NASA GSFC

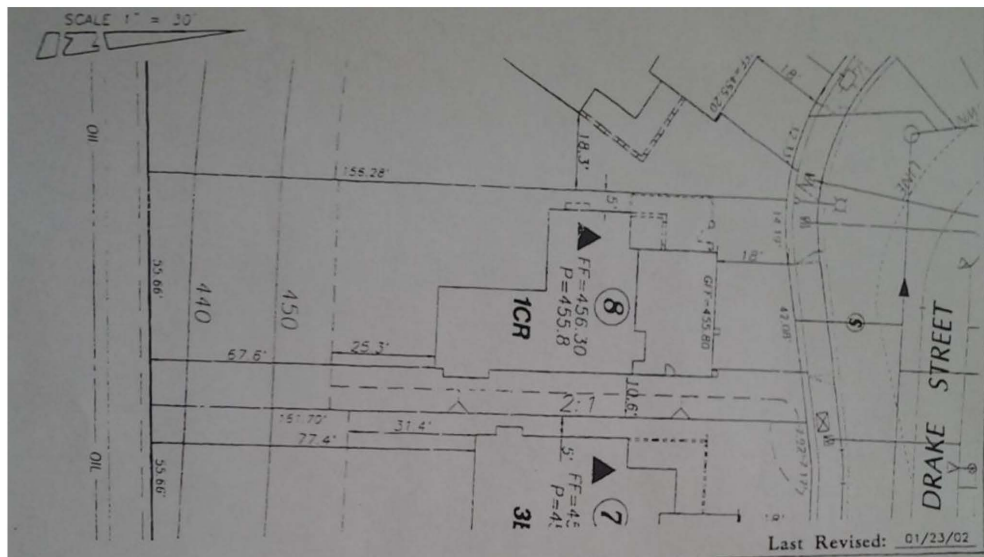


The slope dataset is derived from a 30-meter Digital Elevation Model (DEM) provided by the USGS National Map. Slope is a critical factor in wildfire behavior, as steeper slopes can accelerate fire spread by pre-heating vegetation ahead of the flames. Understanding terrain characteristics is



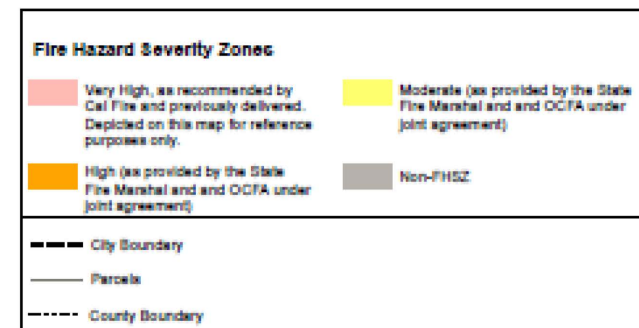
2 Near pipelines

- Plant large trees at least 14' from the edge of the pipeline
- Choose low-growing lawns and flower beds for the area above the pipeline



Yorba Linda

High and Moderate Fire Hazard Severity Zones
As Provided by CAL FIRE



11.45 ft

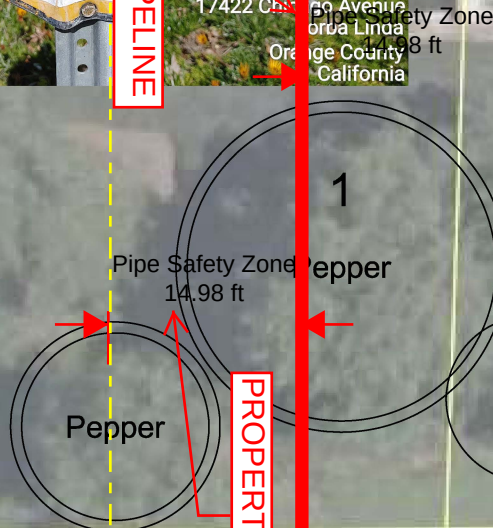
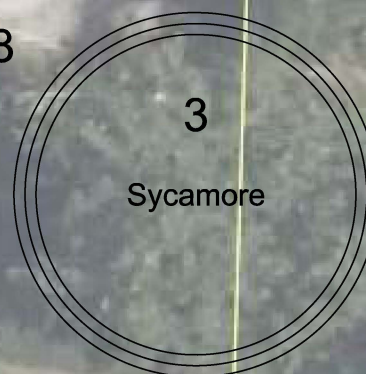
EXISTING SITE CONDITION



GAS FUEL PIPELINE

Mar 21, 2025 10:05:07 AM
17422 Chino Avenue
Orange, CA 92668
Orange County, California

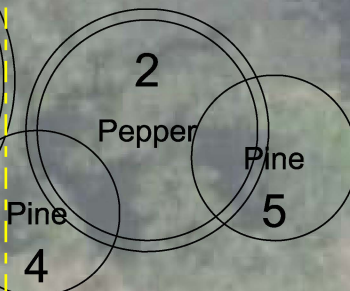
Elevation: 458



Pipe Safety Zone
14.98 ft

Pepper

PROPERTY LINE



2
Pepper

Pine
4

Pine
5



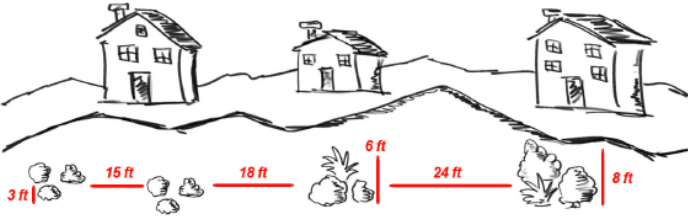
Pine
6

Elevation: 438

DRAFT

HORIZONTAL SEPARATION

All shrubs greater than 2 feet in height shall be in a maximum grouping of 3 plants and separated by a distance of 3 times the height of the tallest shrub in the group or 15 feet, whichever is greater.



Shrubs greater than 2 feet in height shall be no closer than 15 feet from the edge of the tree canopy(s) measured horizontally.

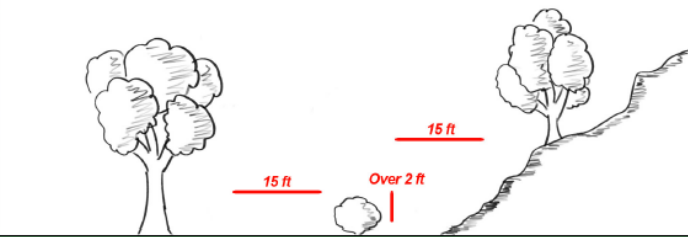
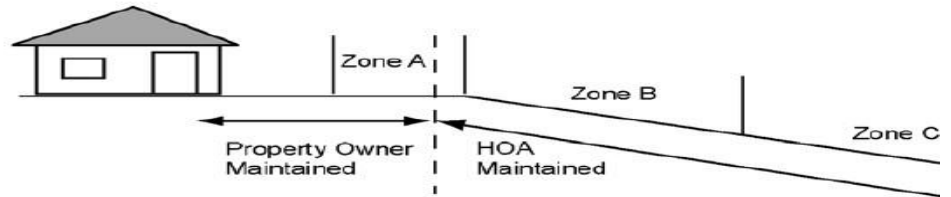
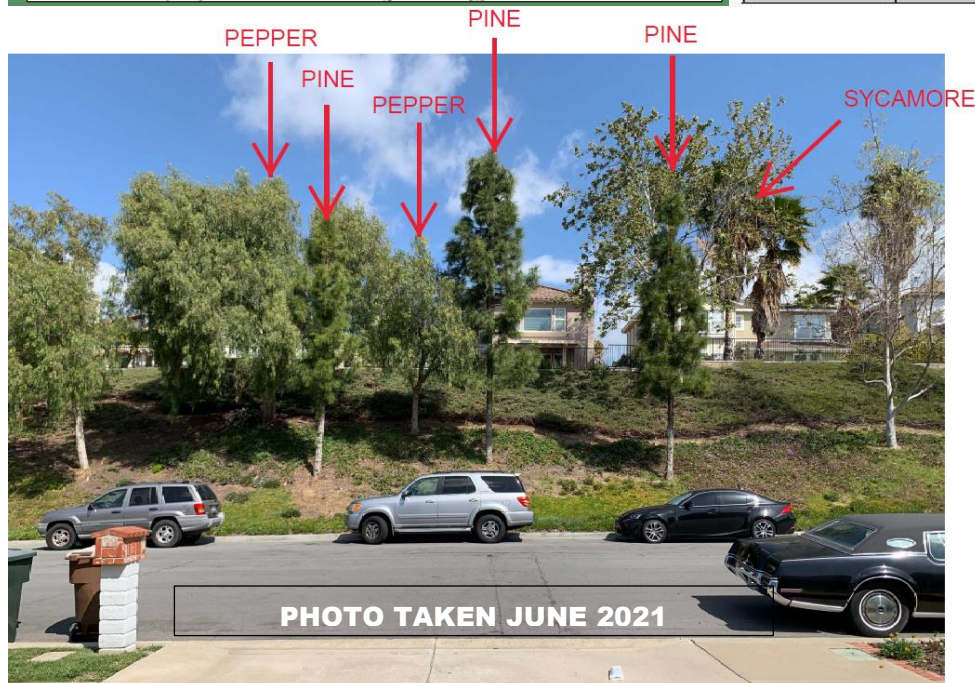


Table 2: OCFA Fuel Modification I



ZONE	REQUIREMENTS	
A	20 feet wide and on level ground - Landscaped with approved plants - No combustible construction permitted	Lin stru
B	- Minimum of 50 feet wide - Irrigated and landscaped with approved plants	Slo
C/D*	- Minimum of 50 feet wide for each zone - All dead and dying materials are removed - Native vegetation thinned 50% in Zone C and 30% in Zone D	Slo



- b. That property included within a SFPA may be excluded when the requirements of Government Code Section 51182 because, as a result of its location and/or through required compliance with the provisions of any applicable Fuel Modification Zone Guidelines in effect for the City of Yorba Linda, the property will no longer be in, upon, or adjoining a mountainous area, forest-covered land, brush-covered land, grass-covered land, or land that is covered with flammable materials.

The City of Yorba Linda has fire preventive measures, both structural requirements and defensible space requirements, in its Uniform Building Code and Uniform Fire Code that are equal to or greater than those requirements of State Government Code 51182. Also, with development of the VDVMP, residential land uses in Village I will be bordered to the north by Village II of the VDVMP and the golf course, to the south by existing City development, to the east by Village IV of the VDVMP and the golf course, and to the west by the mobile home park and the Carbon Canyon dam spillway. Village I has no direct interface with any wildland/natural open space area. Therefore, both findings necessary for exclusion can be made for all the property within Village I.

At the time of tentative tract map(s) approval for Village I, the map(s) shall include the necessary findings for and exclude all properties from inclusion in the Special Fire Protection Area.

structure ("safe dispersal area" per CBC 1028.5), a gate operable by the occupants evacuating the structure must be provided that allows unimpeded egress to the public way. Where doors in the path of emergency egress travel are required to be equipped with panic hardware, gates shall likewise be similarly equipped. These requirements may not apply to individual single family residences.

- 2) Vegetation - As stated previously, certain types of ground cover and low-growing plants present an impediment to firefighting and rescue operations and are prohibited from being planted in the access walkway. In addition, taller vegetation such as shrubs and trees may not be located where they will, either when planted or upon maturation, present an obstruction to accessing rescue windows. Raised planter areas are not allowed to be used as rescue ladder access points where the change in elevation could be a potential impediment to firefighter access.
- 3) Key boxes and key switches - Knox devices shall be provided where necessary to ensure that immediate access for firefighting, rescue, and other emergency purposes is possible.
 - a. Location - At a minimum, Knox devices shall be provided for the following locations:
 - (a) gates along the paths of firefighter travel from the fire lane to all points along the perimeter of the structure;
 - (b) gates to pool enclosures;
 - (c) building gates or doors leading to interior courtyards containing rescue windows;
 - (d) building gates or doors leading to exterior hallways or balconies providing access to residential units or tenant suites;
 - (e) gates in exterior enclosures containing hazardous or combustible material storage;
 - (f) buildings using hazardous materials or processes where such warrants immediate access
 - (g) exterior doors to rooms containing main alarm panels or annunciators;
 - (h) doors and gates providing access to parking structures;
 - (i) within the fire command center in high-rises and other large buildings;
 - (j) main entry to buildings equipped throughout with an alarm system and not staffed 24/7;
 - (k) facilities where a high-volume of after-hours calls is expected or experienced;
 - (l) doors and gates to other areas identified by the fire department.

When approved by the OCFA, a frangible padlock or chain that can be cut with bolt cutters or a Knox padlock may be used in lieu of a key box for exterior hazardous or combustible materials storage areas. Manually operated vehicle or pedestrian access gates that are not

Recorded in Official Records, County of Orange
Gary L. Granville, Clerk-Recorder

RECORDING REQUESTED BY:

FIRST AMERICAN TITLE INSURANCE CO.



134.00

20010714115 02:36pm 10/10/01

118 4 A19 A17 62

0.00 0.00 0.00 0.00 122.00 0.00 0.00 0.00

WHEN RECORDED MAIL TO:

SEE ATTACHED

CONFORMED COPY

THIS SPACE FOR RECORDERS USE ONLY

AMENDED AND RESTATED
MASTER DECLARATION
OF
RESTRICTIONS AND RESERVATION OF EASEMENTS
FOR
THE VISTA DEL VERDE MASTER PLANNED COMMUNITY
YORBA LINDA, CALIFORNIA

THIS DOCUMENT IS BEING RE-RECORDED FOR THE PURPOSE OF MAKING CORRECTIONS
TO EXHIBIT "A" AND EXHIBIT "D".

THIS PAGE ADDED TO PROVIDE ADEQUATE SPACE FOR RECORDING INFORMATION
(ADDITIONAL RECORDING FEE APPLIES)

in the office of the recorder in the same manner as the Declaration of Annexation was Recorded; (b) neither SWEPI, nor Declarant, nor an Owner of the real property which was annexed, has exercised any Project Association vote with respect to any portion of such annexed real property; (c) assessments by a Project Association or Landscape/Lighting District have not yet commenced with respect to any portion of such annexed real property; (d) no escrow has closed for the sale to the public of any Lot in any portion of such annexed real property; (e) a Project Association comprised of members which are owners of the annexed real property has not made any expenditures or incurred any obligations with respect to any portion of such annexed real property; and (f) a draft of the Notice of Deletion of Territory is submitted to and approved by the Federal Housing Administration, if required.

ARTICLE 10

10. Miscellaneous Provisions.

10.1 Compliance With this Declaration. Each Owner shall comply with this Declaration and insure such compliance by such Owner's family, the Occupants of such Owner's Lot, agents, guests, contractors, employees, tenants or subtenants, any other person coming within the Project at the request of or with the consent of such Owner or the Occupants of such Owner's Lot, and the pets of any such persons. If a Lot has more than one Owner, all Owners are jointly and severally liable for all of the obligations of the Owner under this Declaration.

10.2 Enforcement. Subject to the provisions of Civil Code Section 1354 regarding alternative dispute resolution, if applicable, the provisions of this Declaration may be enforced as follows:

10.2.1 Against Owners. Except to the extent otherwise expressly provided in this Declaration, any Owner or Owners may enforce any and all of the provisions now or hereafter imposed by this Declaration upon other persons, or upon any property within the Project.

10.2.2 Nuisances. Every act or omission whereby any provision of this Declaration is violated in whole or in part, is hereby declared to be a nuisance and may be enjoined or abated by an Owner or Owners.

10.2.3 Cumulative Remedies. The remedies provided for in this Declaration are cumulative and not exclusive.

10.3 Nonwaiver. The failure to enforce any provision of this Declaration shall not constitute a waiver of any right to enforce that provision or any other provision of this Declaration.

10.4 Attorney's Fees. Reasonable attorneys' and experts' fees and costs shall be awarded to the prevailing party in any action brought to enforce this Declaration.

10.5 Construction. All provisions of this Declaration shall be liberally construed, together, to promote and effectuate the beneficial operation of the Project.

10.6 Compliance with Law. No provision of this Declaration shall be construed to excuse any person from observing any applicable law or regulation of any governmental body.

10.7 Severability. The provisions of this Declaration shall be deemed independent and severable, and the invalidity or partial invalidity of any provision, or portion thereof, shall not affect the validity or enforceability of any other provision.

10.8 Number and Gender. The singular shall include the plural and the plural the singular unless the context requires the contrary, and the masculine shall include the feminine and neuter, as the context requires.

10.9 Titles. The table of contents and all titles used in the Declaration, including those of Articles, Sections, and Subsections, are intended solely for convenience of reference and shall not affect the content of such Articles, Sections, and Subsections, nor any of the terms or provisions of this Declaration. Any numbered or lettered subdivision of a Section is referred to as a "Subsection."

10.10 Statutory References. In the event any Ordinance or statute in this Declaration, whether stated by code and number, or named, is amended, repealed, renumbered, or renamed, all references to such Ordinance or statute law shall refer to the amended, repealed, renumbered, or renamed Ordinance or statutory provisions.

10.11 No Partition or Severance of Interests. There shall be no partition or severance of any Lot from the Project, and the Owners shall not seek to partition or sever any Lot or part thereof from the Project, nor shall they have any right to maintain an action for judicial partition in connection with the Project, unless such right is expressly given by this Declaration or in accordance with Section 1359 of the Civil Code, and unless any consent of first Mortgagees required

by this Declaration is obtained. This provision shall not prohibit the partition of the ownership of any Lot or Lots into joint or common ownership so long as no physical partition takes place and there is no severance of the Lot from any incident of this Declaration.

10.12 Implied Grant or Reservation of Easements

. Whenever any provision of this Declaration provides for an easement over one portion of the Project ("the servient estate") in favor of another portion of the Project ("the dominant estate") and both estates are owned by the same Owner, the separate conveyance of either the dominant or servient estate without the other shall constitute a grant or reservation, respectively, of the easement, notwithstanding anything to the contrary in the instrument of conveyance.

10.13 No Public Dedication.

Nothing contained in this Declaration shall be deemed to be a gift or dedication of any portion of the Project to the general public or for the general public or for any public purpose whatsoever, it being the intention of Declarant that this Declaration be strictly limited to and for the purposes expressed in this Declaration.

10.14 Non-Merger of Lots.

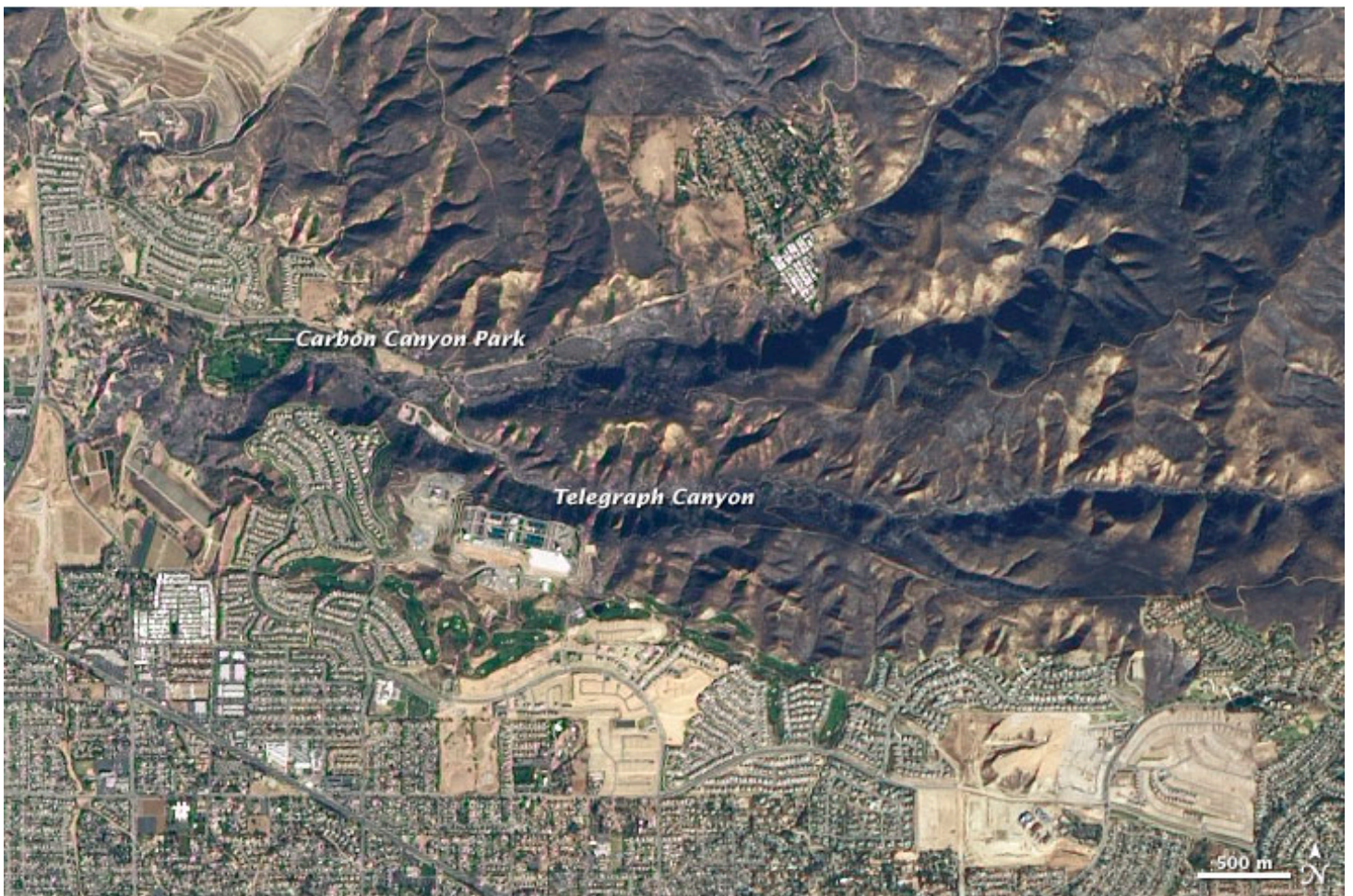
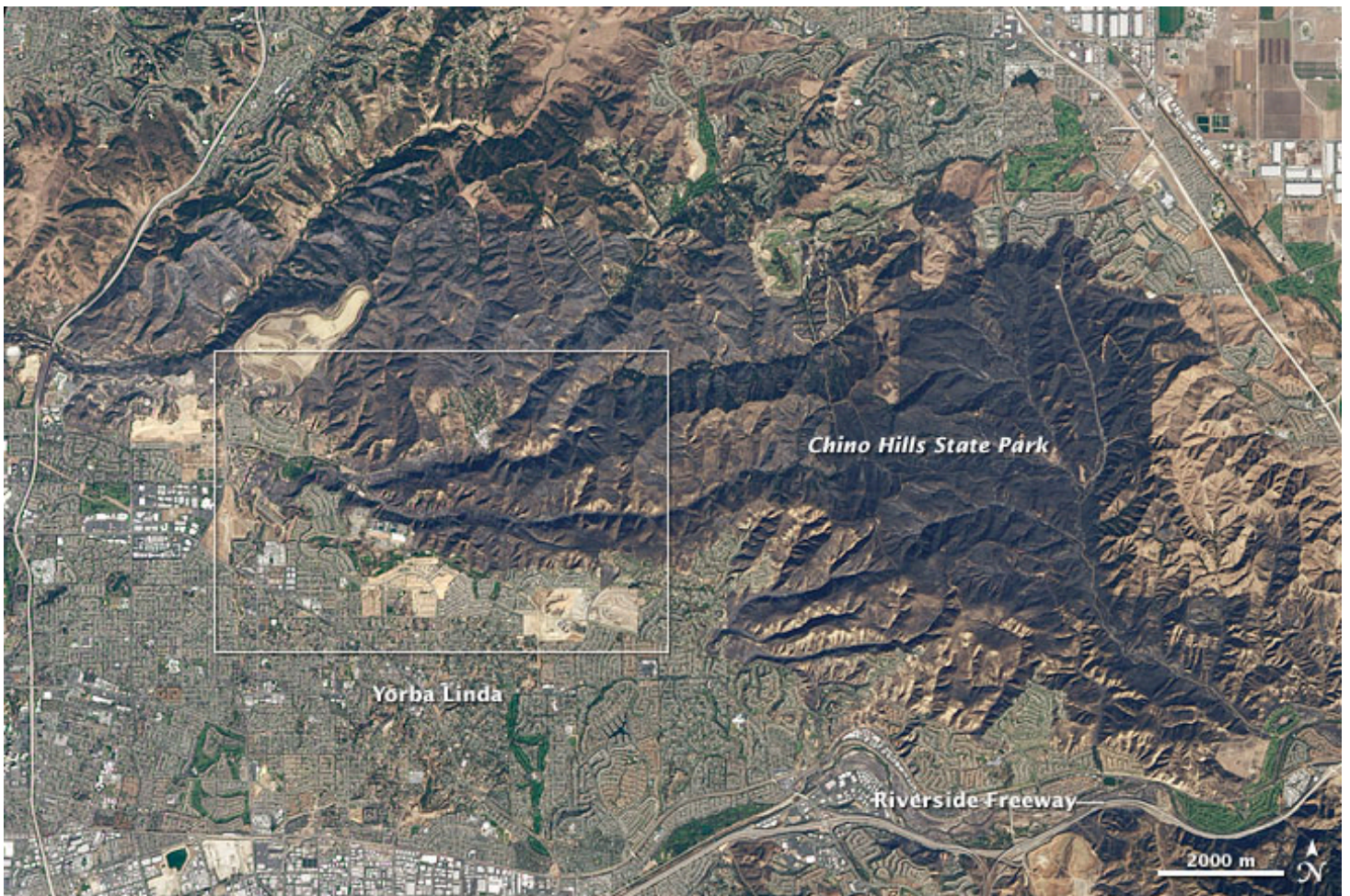
From and after the close of escrow for the sale of the first Lot in the Project, the subsequent sale or transfer of a Lot, whether voluntarily or by operation of law resulting in all Lots in the Project being owned by the same Person shall not result in a merger of all such Lot estates and this Declaration shall remain in full force and effect according to its terms unless amended or terminated in accordance with the provisions hereof.

10.15 Priorities and Inconsistencies.

If there are conflicts or inconsistencies between this Declaration and the terms and provisions of any subsequent declarations of conditions, covenants and restrictions recorded by Merchant Builders, then the terms and provisions of this Declaration shall prevail.

10.16 Assignment by Declarant.

Declarant may assign its powers and responsibilities in whole or in part in connection with its sale or transfer of all or part of the Project, including the sale of any Planning Areas. Any assignment or acceptance of part or all of Declarant's powers and responsibilities for all or a portion of the Project, including any Planning Areas, shall be in writing and recorded. Each Assignee under any such assignment shall agree, as part of Assignee's acceptance, to accept the duties and obligations of Declarant under this Declaration, and may exercise the rights of Declarant provided by this Declaration for the area assigned,



November 18, 2008

November 18, 2008

November 18, 2008

JPEG

TIFF

One hundred eighty-seven homes were destroyed by the Freeway Fire in Southern California in mid-November 2008. Driven by Santa Ana winds, the fire exploded out of the Chino Hills into communities at the foothills of the mountains. More than 30,000 acres were scorched by the fire.

This natural-color image of the burned area was captured by the Advanced Land Imager (ALI) on NASA's Earth Observing-1 satellite on November 18, 2008. The top image shows the Chino Hills north of Riverside Freeway and west of Chino Valley Freeway, a mostly undeveloped area that encompasses Chino Hills State Park. Small cities and residential areas encircle the mountains. The burned area is charcoal, and it stretches across most of the Chino Hills. The lower image is a detailed view of the edge of the burned area in northwestern Yorba Linda. The fire crossed Telegraph Canyon and made forays southwestward into neighborhoods. One arm of the fire encircled Carbon Canyon Regional Park.

Southeast of the Riverside Freeway (shown in the large image), is a part of Chino Hills State Park called the Coal Canyon area. The area has a dull greenish-brown color that is typical for the dry woodland/chaparral ecosystems native to the area. (In this part of California, bright green vegetation is the product of irrigation, for example, golf courses and lawns.) The Coal Canyon area was added to Chino Hills State Park in 2000, and it was the only part of the ~14,000-acre park that was not burned, according to local news reports.

NASA image by Robert Simmon, based on data provided by the EO-1 Mission Office. Caption by Rebecca Lindsey.

Image of the Day

Land

Fires

Human Presence



[View this area in EO Explorer](#)

This image shows the burn scar left by the Freeway Fire in the Chino Hills near Yorba Linda, California.

Image of the Day for November 28, 2008

Instrument:

EO-1 — ALI

View more Images of the Day:

Nov 27, 2008

Nov 29, 2008

JAN 12 2026

TO: Jamie Lai, P.E., City Engineer, City of Yorba Linda

CC: City Manager; City Attorney (Rutan & Tucker); City Clerk; City Council

BY

FROM: Peter Meng, P.E.

DATE: January 12, 2026

SUBJECT: FINAL TECHNICAL INTERROGATORY: Imminent Life-Safety Risk, Professional Liability, and Notice of Ethical Violation

Ms. Lai,

As a California-licensed Professional Engineer, you are bound by **16 CCR § 404** to prioritize public safety over administrative convenience. Your continued reliance on non-technical legal opinions to justify a documented fire and geomorphological hazard is a breach of your professional duty.

This document serves as a "Material Change in Condition" filing. I demand a point-by-point response to these 30 critical safety interrogatories by **January 19, 2026**, to coincide with the City Clerk's Public Records Act (PRA) production timeline.

I. REBUTTAL TO NELSON TRANSCRIPT (GEOGRAPHIC FRAUD)

1. **Direct Fire Interface (Report p. 25):** Ms. Nelson testified the Freeway Complex Fire was at the "other end of Yorba Linda." My report (p. 25) cites NASA data proving the fire "encircled Carbon Canyon Regional Park." Does the City Engineer admit this fire was in the *immediate northwestern quadrant* of the city?
2. **Burn Scar Verification (Report p. 24):** NASA EO-1 ALI imagery proves a burn scar at the neighborhood interface. Why has the City accepted a resident's false geographical claim over satellite-verified data?
3. **Measurement Validity:** Nelson admitted her husband measured Federal - USDOT regulated fuel gas main proximity with a "yardstick." Does City Engineering certify yardsticks as a valid method for verifying pipeline clear zones under **49 CFR § 192**?
4. **Species-Specific Hazard:** Nelson claims healthy trees are safe. My report identifies the *species* (Pine/Pepper) as the hazard due to BTU output. Does the P.E. admit that a "healthy" tree is still a high-density fuel source during a convective heat event?
5. **Admitted "Forest" Condition:** Nelson repeatedly referred to the slope as a "forest." This triggers the **VDV SFPA Exclusion (VP 1-21)**, which voids the exclusion if the land is "forest-covered." Does the City admit the exclusion is now technically void?
6. **Intentional Hazard Creation:** Nelson admitted a former City Manager planted "bigger trees" to ensure they "were protected." Does the City Engineer certify that using hazardous fuel sources as a "privacy shield" is a valid engineering trade-off?
7. **Spite Fence Admission:** Nelson's testimony confirms the trees are intended to block neighbors. This meets the definition of a "Spite Fence" under **CA Civil Code § 841.4**.

8. **Irrigation-Induced Risk:** Nelson admitted "there was too much water one time." My report warns of "Hydro-Induced Slope Failure." Has the City performed a slope stability analysis in light of this admitted over-saturation?
9. **The CUP Myth:** Nelson claimed a CUP mandates these trees. Provide the specific index number of the CUP that requires the maintenance of a documented public hazard.

II. ANALYSIS OF P.E. SAFETY REPORT & B-09 VIOLATIONS

10. **Pre-1980 Structural Vulnerability (p. 1):** Does the City Engineer certify these structures can survive the radiant heat of a 60-foot Pine fire?
11. **B-09 Violation (Report p. 19):** Taller vegetation on the slope is in direct violation of **Guideline B-09**. Does the City Engineer formally dispute that the current vegetation height exceeds the maximum allowable limit?
12. **Vertical Clearance Breach:** State the current measured vertical clearance at the Chicago Ave cul-de-sac for emergency apparatus access.
13. **Infrastructure Encroachment (p. 16):** My report identifies root systems encroaching on **Federal USDOT and relevant authority regulated fuel gas mains**. Does the City Engineer certify that physical integrity and cathodic protection are not compromised?
14. **Species-Specific Hazard (p. 13):** My report cites OCFA (2013) labeling these species "dangerous." Does the City Engineer formally dispute this technical assessment?
15. **Fuel Modification Declassification (p. 18):** My report proves the "forest" density exceeds the 1990s declassification threshold. Does the City admit it is operating under an outdated safety fallacy?
16. **Slope Failure & Over-Irrigation Vectors (Engineering Analysis):** Nelson admitted to periods of "too much water" (over-irrigation). My analysis identifies this as a primary trigger for hydro-induced slope failure when combined with the surcharge weight of the "bigger trees" she demanded. Provide the "Factor of Safety" (FoS) calculation that accounts for both excessive tree weight and saturated soil conditions.
17. **Ember Wash Simulation (Engineering Analysis):** Why has the City Engineer not produced a counter-simulation to prove the "forest" is not a "wick" to the homes?
18. **Aerial Suppression Failure (Engineering Analysis):** Aerial fire retardant cannot penetrate the current dense canopy. Does the City admit that the "forest" renders aerial suppression ineffective for the homes below?
19. **Rotor-Wash Convection (Engineering Analysis):** Helicopter rotor-wash during suppression will drive embers into non-compliant attic vents. Has the City modeled this "convective push" risk?
20. **Secondary Hazard Mode:** If the City fails to suppress at the canopy level, the resulting ground-fire will be inaccessible to ground crews. Is this a planned "Sacrifice Zone"?

III. LEGAL ARGUMENT MATRIX & ETHICAL VIOLATIONS (RUTAN & TUCKER)

21. **Stale Data Reliance:** Your 5/30/25 email relied on a 2022 OCFA check. My 2025 Report identifies 3 years of new fuel growth. Is it your legal opinion that 2022 data overrides a 2025 P.E. Safety Report?

22. **Policy E-3 vs. Fire Code:** You claim Policy E-3 (neighbor consent) blocks removal. Does the City Attorney contend that a local "Landscape Policy" overrides the **State Fire Code** and **Public Safety Mandates**?
23. **Brown Act & Professional Misconduct (7/31/25 Matrix):** As established in my Legal Argument Matrix:
- o **Brown Act Violation (Gov. Code § 54954.3):** City Attorney Todd Litfin's unprompted interference and demeaning language during my May 6, 2025, public comment—labeled "uncivil" by the Mayor—constitutes a chilling of protected speech.
 - o **Procedural Abuse (Gov. Code § 54950):** The May 30, 2025, email was improperly labeled "Privileged and Confidential" to suppress discourse on public fire hazards where no litigation or personnel privilege exists. Does the City Attorney maintain that these tactics are a valid exercise of municipal law, or an admission of an intent to obstruct public safety transparency?
24. **OCFA Misrepresentation:** You claimed OCFA found it "safe." My report (p. 12) proves they were never shown the species-specific hazard data. Provide the name of the OCFA official who purportedly cleared the *current* fuel load.
25. **Notice of Intent to Report (Legal):** Based on the documented "uncivil" conduct and the suppression of fire safety data, a formal complaint will be filed with the **State Bar of California** regarding violations of the Rules of Professional Conduct, specifically regarding conduct prejudicial to the administration of justice and the public interest.

IV. ADMINISTRATIVE RECORDING & DEADLINE

26. **Duty to Disclose:** Under **B&P Code § 6775**, a P.E. must disclose risks. I have done so. You are now "On Notice."
27. **Civil Rights:** By protecting the neighbor's "privacy" over my "safety," the City is violating the 14th Amendment right to equal protection.
28. **Public Nuisance:** Does the "forest" density meet the definition of a Public Nuisance under **Civil Code § 3480**?
29. **Superior Court Preparation:** This 30-point list is "Exhibit 1" for a Writ of Mandate.
30. **Federal Oversight:** Does the City Engineer certify that the proximity to **Federal USDOT** and relevant authority regulated fuel gas mains meets all federal safety setback requirements?

NOTICE OF NON-RESPONSE

Failure to provide a technical, P.E.-stamped response to each interrogatory by **January 19, 2026**, shall be recorded as an **Administrative Admission of Fact**.

Note to City Clerk: I demand a time-stamped acknowledgment of this submission. This document serves as a "Critical Safety Notice" and must be included in the responsive records for the pending PRA request due on 1-19-26. Silence will be construed as a conscious disregard for public safety in all subsequent Board (BPELSG) and State Bar filings.

Peter Meng, P.E.

